

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3598

By: Lepak

AS INTRODUCED

An Act relating to higher education; amending 70 O.S. 2021, Sections 3242 and 3242.2, which relate to resident tuition; removing option to file application or affidavit to receive resident tuition; prohibiting illegal immigrants from receiving scholarships, financial aid, or resident tuition; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3242, is amended to read as follows:

Section 3242. A. The Oklahoma State Regents for Higher Education may adopt a policy which allows a student to enroll in an institution within The Oklahoma State System of Higher Education and allows a student to be eligible for resident tuition if the student:

1. Graduated from a public or private high school in this state; and

2. Resided in this state with a parent or legal guardian while attending classes at a public or private high school in this state for at least two (2) years prior to graduation.

1 B. To be eligible for the provisions of subsection A of this
2 section, an eligible student shall:

3 1. Satisfy admission standards as determined by the Oklahoma
4 State Regents for Higher Education for the appropriate type of
5 institution and have secured admission to, and enrolled in, an
6 institution within The Oklahoma State System of Higher Education;
7 and

8 2. ~~If the student cannot present~~ Present to the institution
9 valid documentation of United States nationality or ~~an immigration~~
10 ~~status permitting study at a postsecondary institution:~~

11 ~~a. provide to the institution a copy of a true and~~
12 ~~correct application or petition filed with the United~~
13 ~~States Citizenship and Immigration Services to~~
14 ~~legalize the student's immigration status, or~~

15 ~~b. file an affidavit with the institution stating that~~
16 ~~the student will file an application to legalize his~~
17 ~~or her immigration status at the earliest opportunity~~
18 ~~the student is eligible to do so, but in no case later~~
19 ~~than:~~

20 ~~(1) one (1) year after the date on which the student~~
21 ~~enrolls for study at the institution, or~~

22 ~~(2) if there is no formal process to permit children~~
23 ~~of parents without lawful immigration status to~~
24 ~~apply for lawful status without risk of~~

1 ~~deportation, one (1) year after the date the~~
2 ~~United States Citizenship and Immigration~~
3 ~~Services provide such a formal process, and~~
4 ~~c. if the student files an affidavit pursuant to~~
5 ~~subparagraph b of this paragraph, present to the~~
6 ~~institution a copy of a true and correct application~~
7 ~~or petition filed with the United States Citizenship~~
8 ~~and Immigration Services no later than:~~

9 ~~(1) one (1) year after the date on which the student~~
10 ~~enrolls for study at the institution, or~~

11 ~~(2) if there is no formal process to permit children~~
12 ~~of parents without lawful immigration status to~~
13 ~~apply for lawful status without risk of~~
14 ~~deportation, one (1) year after the date the~~
15 ~~United States Citizenship and Immigration~~
16 ~~Services provide such a formal process, which~~
17 ~~copy shall be maintained in the institution's~~
18 ~~records for that student.~~

19 ~~C. Any student who completes the required criteria prescribed~~
20 ~~in subsection A of this section, paragraph 1 of subsection B of this~~
21 ~~section, and subparagraph a of paragraph 2 of subsection B of this~~
22 ~~section shall not be disqualified on the basis of the student's~~
23 ~~immigration status from any scholarships or financial aid provided~~
24 ~~by this state.~~

1 ~~D. The provisions of this section shall not impose any~~
2 ~~additional conditions to maintain resident tuition status at a~~
3 ~~postsecondary educational institution within The Oklahoma State~~
4 ~~System of Higher Education on a student who was enrolled in a degree~~
5 ~~program and first received such resident tuition status at that~~
6 ~~institution during the 2006-2007 school year or any prior year of~~
7 ~~status as an alien lawfully present in the United States.~~

8 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3242.2, is
9 amended to read as follows:

10 Section 3242.2. ~~A. Except as otherwise provided in Section 3242~~
11 ~~of Title 70 of the Oklahoma Statutes, an~~ An individual who is not
12 lawfully present in the United States shall not be eligible ~~on the~~
13 ~~basis of residence within the state for:~~

14 1. Any postsecondary education benefit, including, but not
15 limited to, scholarships or financial aid; or

16 2. Resident tuition.

17 ~~B. The provisions of subsection A of this section shall not~~
18 ~~apply to a student enrolled in a degree program at a postsecondary~~
19 ~~educational institution within The Oklahoma State System of Higher~~
20 ~~Education during the 2006-2007 school year or any prior year who~~
21 ~~received a resident tuition benefit pursuant to Section 3242 of~~
22 ~~Title 70 of the Oklahoma Statutes at that institution.~~

23 SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

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